Louisa County Water Authority
Board of Directors
March 8, 2023

MEMBERS PRESENT: Mr. Judson Foster, Chairman; Mr. Douglas Smith, Vice-Chairman; Mr. Bob Hardy; Mr. David Kies; Mr. Robert Morgan

MEMBERS ABSENT: Mr. Tom Filer; Mr. Byron Wilson

OTHES PRESENT: Ms. Pam Baughman, General Manager; Mr. Kyle Eldridge, Assistant County Attorney; Ms. Mary Johnson, Program Manager; Mr. Hunter Martin, Water Operation Manager; Mr. Cody Langridge, Deputy Water Operations Manager; Mr. Wesley Basore, Wastewater Operations Manager (retired) and Mrs. Debbie Basore

A. Call to Order

Chairman Foster called the meeting to order at 6: 05 pm.

1. ADOPTION OF THE AGENDA

Chairman Foster asked if there were any changes or additions to the agenda. Ms. Baughman asked to remove item #2 & #4 and add a Resolution approving an agreement with the County of Louisa to sell no more than 75% of the capacity of the Zion Crossroads Wells. Mr. Kies made a motion to adopt the agenda as amended. Mr. Morgan seconded the motion and carried 5-0 among the members present.

B. Presentations

2. INTRODUCTION – BYRON WILSON APPOINTED TO THE LOUISA COUNTY WATER AUTHORITY BOARD OF DIRECTORS – REMOVED FROM THE AGENDA

3. PRESENTATION – RESOLUTION OF APPRECIATION TO WESLEY BASORE FOR HIS YEARS OF SERVICE

Mr. Wesley Basore was presented with a Resolution of Appreciation for his years of service to Louisa County Water Authority. Wesley retired from Louisa County Water Authority on February 15, 2023.

4. PRESENTATION – RESOLUTION OF APPRECIATION TO DURWOOD WILLIS FOR HIS YEARS OF SERVICE – REMOVED FROM THE AGENDA

C. Citizen Information

D. Consent Agenda

5. APPROVAL OF THE MINUTES:

A. FEBRUARY 15, 2023 – REGULAR BUSINESS MEETING

6. TREASURER'S REPORT:

A. O & M REPORT / CAPITAL REVENUE & EXPENDITURE REPORT – FEBRUARY 2023
B. APPROVAL OF DISBURSEMENTS – FEBRUARY 2023
C. CONSTRUCTION FUND – FEBRUARY 2023

The Board reviewed the Consent Agenda, including the Treasurer's Report. Upon completion of the review, Mr. Hardy made a motion to approve the Consent Agenda and Treasurer's Report as presented. The motion was seconded by Mr. Kies and carried 5-0 among the members present.

E. Old Business

7. UPDATE – JAMES RIVER WATER PROJECT

March 8, 2023, update.

The Army Corps of Engineers permit continues its way through the process. The Corps has received the Phase III Treatment Plan for the pump station site. Once the pump station site has been fully investigated for cultural resources and the final report submitted to the Corps, the Corps

permit will be advertised for public comments. When the public comments have been addressed, the Army Corps of Engineers permit will be issued.

The Department of Environmental Quality permit has worked its way through the internal review process. A couple of minor questions have been raised, regarding the quantity of water to be withdrawn and if a mussel survey has been conducted. DEQ has everything they need to run the model and once the minor questions have been addressed, the draft permit will be sent to the James River Water Authority for their review. Once the JRWA's review is complete, the permit will enter a 30-day public comment period. When all public comments are addressed, the permit will be issued.

The Virginia Marine Resource Committee permit continues to work its way through the process. During the General Assembly 2023 session HB2181 passed the elimination of duplicate permits for the three waterway crossings.

8. NORTHEAST CREEK WATER TREATMENT PLANT – SLUDGE-VAC-SYSTEM UPDATE

The Virginia Department of Health – Office of Drinking Water reviewed the plans and specifications for the Northeast Creek Water Treatment Plant Sedimentation Basin Improvements. Six items were identified in the plans and specifications that will need to be corrected or addressed. Once the items are addressed, they will be resubmitted for approval. When all items have been addressed to the satisfaction of the Health Department, a Construction Permit will be issued, and the bidding process will move forward.

9. ZION CROSSROADS WELL SYSTEM UPDATES

A. SPRING CREEK - #1 & #2- UPDATE

Sydnor has installed the pit-less adaptors for Spring Creek Well #1 & #2. APEX Electrical has obtained the permits and will be working with Central Virginia Contractors to finalize the piping and electrical work.

Sydnor completed the installation of the pit-less adapters, well pumps, and motors on Monday, March 6, 2023.

B. POORE WELL IMPROVEMENT – UPDATE

Nothing new to report.

10. REGIONAL OPTIMIZATION AND PROCESS OPERATIONS STUDY

Nothing new to report.

11. ZION CROSSROADS WWTP DIESEL TANK ADDITION FOR GENERATOR

Nothing new to report.

12. NEW TRUCK PURCHASE; SNOWPLOW AND 100-GALLON DIESEL TRANSFER TANK

Nothing new to report.

13. OPEN POSITIONS

A. MAINTENANCE TECH

Interviews continue. Further discussion will continue in closed session.

B. WASTEWATER TRAINEE OR OPERATOR

One interview to date. We received an application for a Class II Operator and are working to schedule an interview.

14. Update – Lake Anna Environmental WWTP

A. LAKE ANNA WWTP – PERMIT APPLICATION REVIEW

The Department of Environmental Quality has received the application for reissuance of the Lake Anna WWTP VPDES Permit and considers it complete. Dick Sedgley, with AquaLaw, has been conducting a review and suggesting additional language to provide some protection from citizen lawsuits.

B. LAKE ANNA WWTP – NOTICE OF VIOLATION

The latest Notice of Violation for the facility was received. Any points assessments will be against the current owner not LCWA.

C. LAKE ANNA RESORT – PRE-APPLICATION MEETING

The Board reviewed the information provided by the developer of the Lake Anna Resort (Lake Anna Planned Unit Development). The Resort plans to provide their own water from wells drilled on their property. At the February 28, 2023 meeting, the developer has determined they will construct and operate the pump station that will pump sewage to the Lake Anna WWTP.

15. UPDATE – CLEARWELL ROOF / BASEMENT FLOOR DRAINAGE

Nothing new to report.

16. UPDATE – NANOFILTRATION GRATING EVALUATION / UPGRADE TO ACCESS / PALLET JACK

Dewberry Engineers, Inc. provided drawings for Greg Madison to provide a quote for the supports needed to reinforce the grating run at the back of the Nanofiltration building. Once the grating was removed and the pipe chase entered, it was determined that the proposed drawings would not provide the space needed to install the supports as designed in all locations.

17. DRAFT FY2024 BUDGET

A. POWER POINT PRESENTATION
B. PROPOSED INCREASES
C. ADDITIONAL INCREASES
D. PROPOSED SUMMARY STATEMENT OF INCOME
E. PROPOSED DETAIL STATEMENT OF INCOME
F. PROPOSED SUMMARY STATEMENT OF EXPENSES
G. PROPOSED DETAIL STATEMENT OF EXPENSES

The Board reviewed the proposed rate increases from 3% - 23.5%. Several Board members expressed concern that the Authority continues to fall behind covering O & M costs with user fees and the continued dependance on the connection fees to cover O & M costs.

Upon completion of the review and discussion, Mr. Smith made a motion to direct the General Manager to draft the advertisement for a Public Hearing to be held in May 2023 for a rate increase of 15% in water and sewer fees, notify the Town of Louisa, the Town of Mineral and the County of Louisa of the rate increase and effective date of July 1, 2023. The motion was seconded by Mr. Kies and carried 5-0 among the members present.

F. New Business

18. ATLASELEKTRO – REBUILD OR REPLACE SUBMERSIBLE MIXER

The General Manager reviewed a quote to rebuild a mixer at the Louisa Regional Wastewater Treatment Plant and a quote to purchase a new mixer. The Board was informed that at this time there is not a mixer in inventory if one of the many mixers at the LRWWTP fails. The General Manager was asked if there was a preference for a rebuild mixer or a new mixer. The General Manager stated that new would be preferred because it would have a full warranty.

Upon the conclusion of the discussion, Mr. Smith made a motion to authorize the purchase of a new mixer at a cost not to exceed $20,000. The motion was seconded by Mr. Hardy and carried 5-0 among the members present.

19. DRAFT – WATER SUPPLY EMERGENCY ORDINANCE

The Board reviewed the draft Water Supply Emergency Ordinance provided by Mr. Kyle Eldridge, Assistant County Attorney. The Board asked if the governing body referenced in the ordinance was the Board of Supervisors. In Section 6, the Board stated that Authorities set water rates and fines, does the language proposed give that right to the Board of Supervisors? Mr. Eldridge was asked if an emergency rate should be set in our rate schedule, since the Board has been advised that rate setting is a function of the Authority Board. Mr. Eldridge was asked to remove water

superintendent and add General Manager and eliminate Section 8, 2 (b).

20. UPDATED BOARD CONTACT INFORMATION

The General Manager asked the Board to review the contact information and provide updates if needed.

G. Reports

21. PROGRAM MANAGER'S RREPORT

Nothing new to report.

H. General Manager's Report

● **February levels**: At the end of February 2023, the static well levels are up approximately 1 foot from the end of January 2023 levels. From February 2022 to February 2023, the well levels are down approximately .6 of a foot.

The smaller table shows static well levels located nearer to the production wells. These levels are up approximately .5 of a foot from the end of January 2023 levels. From February 2022 to February 2023, the well levels are down approximately .6 of a foot.

As of March 1, 2023, for the Northern Piedmont Region, the Department of Environmental Quality Drought Monitor indicates normal conditions for precipitation, groundwater reservoir levels and streamflow.

● The current past-due listing is down to $11,183.05 from the past-due listing provided in the General Manager's Report, which reported the past-due balance of $15,618.55.

I. Committees

J. Short Notice Items

RESOLUTION APPROVING AN AGREEMENT WITH THE COUNTY OF LOUISA TO SELL NO MORE THAN 75% OF THE CAPACITY IN THE ZION CROSSROADS WELLS

The Board reviewed the draft resolution approving an agreement with the County of Louisa to sell no more than 75% of the capacity in the Zion Crossroads Wells. A few questions were directed to Mr. Kyle Eldridge.

Upon completion of the discussion, Mr. Smith made a motion to approve the proposed resolution approving an agreement with the County of Louisa to sell no more than 75% of the capacity in the Zion Crossroads Wells. The motion was seconded by Mr. Kies and carried 5-0 among the members present.

K. Closed Session

22. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(1) TO DISCUSS AND CONSIDER PERSONNEL MATTERS; INCLUDING THE DISCIPLINE, APPOINTMENT, ASSIGNMENT, PERFORMANCE, AND SALARIES OF SPECIFIC APPOINTEES AND EMPLOYEES.

Mr. Hardy made a motion to close the regular open meeting and immediately reconvene in executive closed session for the purpose of and consideration of personnel matters, including the discipline, appointment, assignment, performance, and salaries of specific appointees and employees. The motion was seconded by Mr. Smith and carried 5-0 among the members present.

RETURN TO OPEN MEETING:

Mr. Foster closed the closed session and immediately reconvened in regular open meeting at 8:12pm.

CERTIFY:

Mr. Foster read the following statement prior to the vote to certify the closed session.

"I will now poll members to certify that, to the best of your knowledge, only public business matters lawfully exempted from the open meeting requirements under the Virginia Freedom of Information Act, and as identified in the motion for which the closed meeting was convened, were discussed and considered by the Board. If any member believes that the Board varied from the purpose stated for the closed meeting, please state so and the reason prior to casting the vote." A roll call vote was requested with the following results:

Mr. Foster	YES
Mr. Smith	YES
Mr. Filer	ABSENT
Mr. Hardy	YES
Mr. Kies	YES
Mr. Morgan	YES
Mr. Wilson	ABSENT

The motion was carried 5-0 among the members present.

Mr. Hardy made a motion to authorize the General Manager to re-organize the maintenance department and adjust salaries as discussed in closed session. The motion was seconded by Mr. Morgan and carried 5-0 among the members present.

Next meeting date - The next business meeting is scheduled for April 12, 2023.

L. Adjournment

THERE BEING NO FURTHER BUSINESS, Mr. Smith made a motion to adjourn at 8:14 pm. The motion was seconded by Mr. Kies and carried 5-0.

BY ORDER OF:

Mr. Judson Foster
Chairman
LOUISA COUNTY WATER AUTHORITY